

ગુજરાત ગુજરાત GUJARAT

Sl. No. 5047 Date 04/06/18
TOPS Technologies C/o
Cravanam & Sanclibhai
9th Floor, Samedh Complex
CG Road Ahd
Signature
St. Vendor, Navrangpura H.O.

AGREEMENT

The Articles of Agreement made and executed this 24-June-2026

B E T W E E N

TOPS Technologies a company incorporated under The Companies Act, 1956 and having its Registered Office at 907 Samedh Complex, CG. Road, Ahmedabad, acting through its Director Ms. Aditi Modi aged about 46 Years, Occupation: Service, Hindu, Adult resident of Ahmedabad, (hereinafter referred to as the "Employer" or "Company" which expression unless repugnant to the context and/or contrary to the meaning thereof be deemed to mean and include its, successors in business and permitted assigns)

…… **of the First Part**

AND

Tanvi Meer,

Residing at: 70,budh society,udhna yard,limbayat,surat 394210

Mob:- +91 7984876708

Aged:Years, Female, Occupation: Service, Hindu, Adult (hereinafter referred to as **"Tanvi Meer"** or as "The Employee" which expression unless repugnant to the context and/or contrary to the meaning thereof be deemed to mean and include its, successors in business and permitted assigns)

…… **of the Second Part**

AND WHERE AS **Tanvi Meer** shall be working as **"Software Trainer"** in the Company from **15-June-2022** AND WHEREAS the Company felt it necessary to enter into a service bond of **12 MONTHS** (or till the successful completion of the Probation period whichever is later) with effect from the **15-June-2026 the** Employee ***in view of the cost incurred by the Employer in respect of process of selection, training, induction, etc.***

AND WHEREAS the Employee has also agreed and undertaken to enter into a service bond for a period of **12 MONTHS** with the Company from **15-June-2026 on** the terms and conditions as stated and expressed hereunder: -

NOW THEREFORE THESE PRESENT WITNESSES AND IT IS HEREBY MUTUALLY AGREED TO BY AND BETWEEN THE PARTIES HERETO AS UNDER: -

That the Employee agrees to serve with and be employed in this Company, or concern or associates to which the Employee's services may be transferred by this Company for a period of **12 MONTHS** from **15-June-2026 to 15-June-2027** on the terms and subject to the conditions hereinafter contained.

The Employee shall receive an annual salary, payable in monthly, in an amount which shall initially be **Rs.40000** per month from **15-June-2026** subject to such increases as may from time to time be determined by the Director of the Company.

The above amount includes the retention cost of Employee and considering retention cost, the above salary has been fixed by the Employer. If the Employee completes training / probation period successfully as decided by the Company, then he/she will be absorbed in a suitable grade as per Company's rule. It is understood and agreed that the said salary structure shall only be applicable on the performance of the Employee.

It is understood and agreed that the first ninety (90) days of employment shall constitute a probationary period during which period if the Employee does not show the expected performance or remains absent without prior permission or misbehaves the Employer may, in its discretion, terminate the Employee's employment for any reason without notice or cause.

That the Employee shall be entitled to all the benefits and/or amenities as may be available to the Employees of same class or similar rank and position employed in the Company from time to time during the period of his/her services with the Company or with the Company or firm or concern or associates to which his/her services may be transferred from time to time.

Employment Terms and conditions:

1) The Employee agrees that during the employment period he/she will at all times faithfully, industriously and to the best of his/her skill, ability experience and talents, perform all of the duties required of his/her position. In carrying out these duties and responsibilities, the

Employee shall comply with all Employer's policies, procedures, rules and regulations, both written and oral, as are announced by the Employer from time to time. The Employee further agrees to obey all orders of and carry out all the duties entrusted to him/her from time to time by his/her Senior Officers. It is also understood and agreed to by the Employee that his/her assignment, duties, responsibilities and reporting arrangements may be changed by the Employer in its sole discretion without causing termination of this agreement.

2) That the Employee hereby agrees and undertakes to safeguard and hold in trust all notes, notebooks, memorandums, papers, drawings, sketches, diagrams, formulas, designs, books, letters, lists, CDs, DVDs, Floppies including those of or pertaining to raw materials, finished products, goods-in-process, names of suppliers, names of purchasers, or dealers as also price lists of the Company's product or of things in which Company may be dealing in, or may be contemplating to deal in, and all other papers and documents of whatsoever nature and kind that may have come in possession of the Employee while in the Employment of the Company and not to hand over the same to any unauthorized person or suffer or permit the same to be handed over to any unauthorized person and the Employee hereby undertakes to handover all such papers or things above said to Senior Officers whenever called upon to do so and the Employee further agrees not to make copies of or to take extracts from any papers, documents etc., belonging to Company for any purpose other than those of the employment in the Company and further agrees not to carry any such paper, document or copies of extracts outside the premises of the Company and the Employee further agrees to deliver up all such papers, documents etc., in his/her possession to his/her Senior Officers whenever called upon to do so and it shall not be competent for the Employee in such an eventuality to withhold any papers or documents of whatsoever nature on the ground that they relate to his/her employment directly or indirectly.

3) That in the event of the Employee making any discovery or invention relating to the creating, developments or processing of any product or software that may have been undertaken to be formulated by the Company or to be experimented on, the same be the property of the Company, and in the event of the Company deciding to apply for any patent or registered trade mark in connection therewith, the Employee shall join the Company in all applications to the authorities concerned for obtaining and getting vested such patent rights and/or trademark rights in the same to and in favour of the Company exclusively.

4) That the Employee has agreed and hereby agrees and undertakes that the Employee shall not at any time either during the course of his/her employment with this Company, with any of its associate Companies or concerns to which his/her services may be transferred or AT ANY TIME THEREAFTER divulge, displace or make known or suffer to be made known directly or indirectly any of the secrets pertaining to the designs, formulas, processes, specifications or manufacturing details or material requirements, formulae used or any of instruments, equipment, products or articles or things which this Company or any of its associate companies of Firms or concern may have undertaken to experiment in or to manufacture fabricate, design or process and whether the same is actually manufactured, designed, processed, fabricated or experimented in or not as also not divulge, disclose or communicate any information regarding the formulas, specifications, technical or patent information or 'Know How' or the use of anyprocesses materials, instruments, tools or other requirements of the manufacture of the various products and other things manufactured, fabricated or processed by the Company or any of the other Companies or concerns to which the services of the Employee may be transferred : nor any of the secrets or knowledge or information regarding the [plant facilities, machinery, equipment, organization, production lines or production flow as also the method and procedure of production] or of the dealings of the firm, or of the others above referred to and the Employee hereby agrees and undertakes to keep all such information strictly confidential which may have been communicated to him/her in his/her capacity as an

'Employee' or during the course of his/her duties or the period of his/her contract and irrespective whether such information or knowledge came to be acquired by him/her as secret or not and not to divulge and/or suffer the same to be divulged, made known to anyone excepting to a duly authorized officer of the Company.

5) The employee has agreed that during his employment with the employer or after the employment, he/she won't be starting his own business similar to that of the employer.

6) Confidentiality and Trust:

6.1 During the term of employment the Employee must not work for a competitor of the Employer.

6.2 During and after the employment period, the Employee will not divulge or appropriate to his/her own use or to the use of others, in competition with the Employer, any secret or confidential information or knowledge pertaining to the business of the Employer, or of any of its subsidiaries, obtained by him/her in any way while he/she was employed by the Employer or by any of its subsidiaries.

6.3 The Employee stands in a position of confidence and trust. The Employee must not provide any information about the Employer's business or its customers to any competitor.

6.4 The Employee must not make disparaging remarks about the Employer to its other employees, to customers or any person.

6.5 The Employee must not disclose or use any personal information the Employee has access to relating to any other employee or any customer of the Employer. The Employee is required to take all reasonable steps to protect all personal information in Employee's possession against wrongful disclosure or misuse by any other person.

6.6 For the purpose of this clause, "confidential information" means all:-

(a) Information contained in a document, or any software that is the property the Employer and which is by its nature confidential to us and/or our Business and/or to any of our customers; and

(b) Documents or softwares that are marked or contained in a package or envelope that is marked "Private", "Strictly Confidential", "Secret" or "Not to be disclosed" or otherwise uses words which indicate that the Employer regards the information as being of a confidential nature; or

(c) Oral, written, recorded information and/or databases concerning us, our Business, any customer, our menus, systems and procedures.

6.7 The Employee must only use confidential information for the Employer's benefit and in proper performance of the Employee's obligations as an employee.

6.8 The Employee must not at any time during his/her employment or following the Employee's resignation or termination, disclose or divulge any confidential information without the Employer's prior written consent.

6.9 The Employee must not use or attempt to use any information, which the Employee acquires in the course of his/her employment in any manner which may reasonably be expected to cause injury or loss or be calculated to injure or cause loss to the Employer.

6.10 Upon termination of Employee's employment with the Employer, the Employee will be required to return all confidential information to the Employer.

6.11 During the period of his/her employment under this Agreement, the Employee shall not be employed by or otherwise engage in or be interested in any business in competition with the Employer, or with any of its subsidiaries or affiliates, except that the Employee's investment in any such business shall not be considered a violation of this paragraph if such business is not in competition with the Employer.

6.12 If at any time the Employee violates to a material extent any of the covenants or agreements set forth in Clauses 5 and 6, the Employer shall have the right to terminate all of its obligations to make further payments under this Agreement. The Employee acknowledges that the Employer would be irreparably injured by a violation of Clauses 5 and/or 6and agrees that the Employer shall be entitled to an injunction restraining the Employee from any actual or threatened breach of Clauses 5 and/or 6 or to any other appropriate equitable remedy without any bond or other security being required. That it is also agreed that if the Employee shall be found guilty of any misconduct or commit any breach of the provisions of this agreement or absent himself/herself without any reasonable excuse or become incapable of attending to his/her duties, it shall be lawful for the Company to immediately terminate the Services hereby created without any intimation or notice for the same.

7) Misconduct by the Employee includes any of the following:-

(a) Deliberate and wilful failure to follow any lawful instruction or direction by the Employer's officers or any person from whom he/she is required by the Employer to take directions from; or
(b) Serious negligence or incompetence in the performance of his/her duties; or
(c) Any act of dishonesty or deceit by the Employee; or
(d) Any improper or unauthorised use of the confidential information owned or used by the Employer; or
(e) Any improper or unauthorised us e of the Employer's property; or
(f) Act in a way which in the reasonable opinion of the Employer may injure or to be likely to injure the business or reputation of the Employer; or
(g) Any rude, abusive, violent, threatening or seriously inappropriate conduct including bullying towards other employees or towards the customers; or
(h) Any serious breach of Employer's Policy; or
(i) Sending any message over the internet that is defamatory of any person, or is misleading or deceptive or likely to mislead or deceive any person; or
(j) Improper or inappropriate use of your position; or
(k) Any conduct that in the reasonable opinion of the Employer constitutes a serious or potentially serious conflict of interest, including working for any competitor of the Employer; or
(l) Any reckless or deliberate damage to any of the Employer's property; or
(m) Any wilful or continued failure to observe the policies and procedures of the Employer.

8) In order to protect the goodwill of the Employer's business the Employee must not for a period of three (3) month(s) ("the Time") and within 500 kilometres of the Employer's place of business or to any of the concerns to which his/her services have been transferred, where the Employee last worked for the Employer ("the Area") work for any company that is a competitor of the Employer or himself/herself directly or indirectly carry on or be involved in any business that is competitive to the Employer's business.

9) The Employee must not for a period of Six months after the termination of the employment solicit other employees of the Employer to resign and take up employment with the Employee.

10) The Employee must not for a period of Six months from the termination of his/her employment

solicit, approach or induce any customer of the Employer to become a customer to any other person or company that competes with the Employer.

11) The obligations in this clause survive termination of this Employment Agreement and shall continue to bind the Employee and be fully enforceable against the Employee by the Employer.

12) Upon termination of the Employee's employment, the Employee must return the entire Employer's property in its original condition, with allowances for reasonable wear and tear.

13) Any notice required or permitted to be given under this Agreement shall be sufficient if in writing and if sent by registered mail to the Company at its principal executive offices or to the Employee at the last address filed by him/her in writing with the Company, as the case may be.

14) In the event of any dispute, claims, questions or controversies involving the Parties and arising out of or in connection with this Agreementor the execution, interpretation, validity, performance, breach or termination hereof (collectively, "Disputes"), which cannot be finally resolved by the Parties within sixty (60) days of the arising of a dispute by amicable negotiation and conciliation shall be resolved,firstly by mediation and if the same is not resolved by mediation then the same may be resolved by final and binding arbitration. It is agreed that the Employee shall accept and agree with the appointment of the Arbitrator by the Employer to resolve the disputes between the Parties. The arbitration shall be in accordance with the Indian Arbitration and Conciliation Act, 1996 as in force (the "Act").Each Party shall bear its own costs of arbitration unless provided otherwise by the arbitral tribunal.This Agreement shall be governed by the laws of India and subject to the arbitration provisions above, the courts at Ahmedabad shall have exclusive jurisdiction. The award of the Arbitrator shall be final, binding and acceptable to both the Parties.

15) Force Majeure:-

15.1 Except for the obligation of the employer hereunder to make payment to the employee, employee to this Agreement shall not hold employer responsible for any failure to perform or delay in performing its obligations hereunder, if such failure or delay is on account of the occurrence of a Force Majeure Event.

15.2 The Party affected by the Force Majeure Event must immediately notify the other Party in writing with all reasonable details concerning the said Force Majeure Event. If the Force Majeure Event prevents a party from performing its obligations for a period of 60 (sixty) days from the date of receipt of notification of the Force Majeure Event, the Parties shall meet in order to consider in good faith the steps to be taken regarding the continuation of the Agreement. In the event that the Force Majeure Event prevents a party from performing its obligations for a period of 90 (ninety) days or more from the date of receipt of notification of the Force Majeure Event, the party not affected by the Force Majeure Event, may terminate this Agreement, which shall take effect at the date at which a written notice of termination is received by the other Party.

15.3 For the purposes of this Clause 15, Force Majeure Events shall be an event beyond the reasonable control of a Party which is not reasonably foreseeable, including, without limitation, act of God, acts of terrorism, war, abnormal weather conditions, act of terrorism, riots, uprisings, government action or orders, fires, floods, national strikes, any civil commotion, embargo, labour disputes or stoppages, epidemics, pandemics or outbreak of communicable disease, quarantines, national or regional emergencies or any other cause, whether similar in kind to the foregoing or otherwise, beyond the party's reasonable control.

Bond Clauses:

1) That the Employee has agreed to furnish a bond to the extent of **Rs 50,000/-** for indemnifying the Employer against all losses and damages which the Employer may suffer by reason of the breach of the terms of the said agreement by the Employee. That the employee furnishes a Cheque of **Rs. 50,000/-** bearing Cheque No. **'005120'** of Account Number-**'1751101030710 '** over, as an amount for Security against the Bond. In case of breach of any of the terms of this agreement by the Employee, an amount of **Rs. 50,000/-** deposited as a Security Bond shall be forfeited by the Employer after giving two (2) months' notice to the Employee. Further, in addition, any longevity (Bonus) salary given to an employee shall also be forfeited by company along with a security cheque.

2) That in the event of the Employee leaving the services of the Company before the Expiry of the period of the Contract, as also in the event of the Employee making it obligatory or necessary or expedient on the part of the Company to terminate his/her services ***for any reason of whatsoever nature and for things*** mentioned in paragraphs above, the Employee shall be liable to pay and shall pay to the Company or to any of the Companies or concerns to which his/her services may be transferred to a sum of **Rs. 50,000/-**by way of agreed liquidated damages and the Employee agrees to pay the same without any proof of actual damages suffered by the Company or by the Companies or concerns concerned to which his/her services may have been transferred, being required to be produced and such payments shall always be independent of and not in lieu of any other compensation or damages that the Employees may have rendered Himself/herself liable to pay to Company or any of the Companies or concerns as above said, By reason of his/her having committed breach of any of the conditions herein before contained by reason of his/her having caused any damages or injury to the Company or concern to which his/her services might have been transferred, by his/her conduct or omissions while in employment. The Employee, further agrees that, the Company shall have lien on all amounts due to the Employee from the Company in respect of the damages aforesaid and the Company shall be entitled to exercise the same and to set the said amounts off against such damages without reference to the Employee.

3) That in the event of the Company desiring to terminate the services of the Employee at any time during the currency of this agreement without assigning any reason for such termination, the Company shall be entitled to do so by paying the Employee, a sum equivalent to **1 Month's(Basic)** Present Salary then being drawn by him/her in addition to whatever may be due and payable to him/her in lieu of his/her leave earned, but not enjoyed and other accumulated benefits if any; however in the event of his/her services being terminated by the Company at any time when the unexpired period of the contract is less than six months, the Employee shall be entitled to the payment of salary of unexpired period only. In case of misconduct of misbehaviour of an Employee, the Services of the Employee shall be terminated without notice or intimation as stated hereinabove.

4) No change, modification, or termination of any of the terms, provisions, or conditions of this Agreement shall be effective unless made in writing and signed or initialled by all signatories to this Agreement.

5) This agreement represents the complete and exclusive statement of the employment agreement between the Employer and Employee. No other agreements, covenants, representations or warranties, express or implied, oral or written, have been made by the parties concerning their employment agreement.

6) To the extent that any provision hereof is deemed unenforceable, all remaining provisions of the agreement shall not be affected thereby and shall remain in full force and effect.

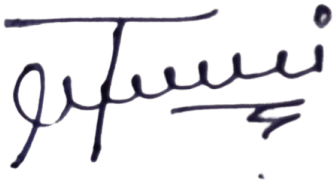
7) If the employee does not join on the date mentioned in the bond, then company reserves the right to Deposit the cheque the amount.

IN WITNESS where of the Company has set the signature of its Authorized Director hereto in the presence of and the Employee has got his/her signature in his/her own hand hereunto on the **24-June-2026**

Signature of Designated Person

Signature of Designated Person
For TOPS Technologies Pvt. Ltd.
Authorised Signature
WITNESSES:
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Signature of Employee



WITNESSES:

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WITNESSES:

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